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Sigma Omega Nu

Latina Interest Sorority, Inc.



Code of Ethics, Sexual Assault Protocol, and
Judicial Review Procedures

Sigma Omega Nu Latina Interest Sorority, Inc.

Code of Ethics

It is the responsibility of all members of Sigma Omega Nu, Latina Interest Sorority, Inc (Sigma Omega Nu) to conduct themselves in a manner that upholds the integrity of this organization. Failure to do so will result in appropriate consequential actions (i.e., judicial review). These regulations and policies are in effect for any member conduct taking place on campus, and/or at Official Sigma Omega Nu events (on or off campus).

All members of Sigma Omega Nu (regardless of status) shall:

- Uphold the history, purpose, and objectives of the Sorority
- Keep all sorority meanings, traditions, rituals and ceremonies confidential
- Keep all information regarding Pledgeship confidential
- Keep all decision making of the Sorority confidential
- Abide by all Sorority Bylaws (Chapter and National Board), Standing Rules, Sorority Traditions, Chapter and National Traditions, and Standardized Pledgeship (Chapter and Prospective Chapter)
- Abide by all University Policies and Regulations, and shall notify in writing the National Board immediately but no later than 2 days of being notified by the University, should they be involved with a University formal or informal investigation, hearing, conference, or resolution related to Sigma Omega Nu
- Shall not furnish false information to any National Board Member or Chapter Officer
- Comply with all applicable federal, state, and local laws and regulations, and shall notify the National Board if legal representation is needed on behalf of a member or Chapter
- Cooperate fully with the National Board and answer questions honestly should they be involved in a National Board, University or legal investigation related to Sigma Omega Nu
- Shall not engage in forgery, alteration, misuse, theft, or use of Sigma Omega Nu's property or Chapter Bylaws, Standing Rules, Sorority Traditions, Chapter and National Traditions and Standardized Pledgeship
- Be respectful, courteous and professional with all other Sisters. Sisters shall not cause verbal abuse, intimidation, coercion or bullying including social media which is sufficiently persistent or pervasive so as to interfere with or limit sister to engage in meetings, socials, events, conferences, study sessions, and community service events related with Sigma Omega Nu.
- Sisters shall not interfere by force, threat or duress with the freedom of movement of person or vehicles on or off campus
- Shall not be disorderly, lewd, or have indecent conduct while at Official Sigma Omega Nu events
- Will not falsify grades for any purposes or assisting others to falsify grades or other forms of academic dishonesty
- Support each other so that Sisters have the opportunity to reach their full potential
- Be respectful, courteous and professional when interacting with Little Sisters
- Conduct themselves in a dignified manner when representing the Sorority, including at all Official

Chapter and National Sorority events

- Conduct themselves in an honorable and dignified manner when attending all other organizations' events
- Conduct themselves in a dignified, respectful, and professional manner when interacting with members from other organizations, the campus community or the greater community;
- Report improper conduct or legal violation to the National Board and/or the University, without fear of punishment, retaliation, or discrimination. Sigma Omega Nu prohibits retaliation against any Sister who reports a possible violation of our Code of Ethics, Bylaws, and/or University Regulations, or the law.
- Sisters shall not false report any situation, including their safety, security, for any reason.
- Sisters shall not make an accusation that is intentionally false or is made with reckless disregard for the truth against any member of Sigma Omega Nu.
- Sisters shall be required to file a written complaint to the National Board and the Chapter's Executive Board specifying which Code of Conduct or Bylaws have been violated if seeking, or referring, addressing, and resolving member misconduct.
- Shall not use, possess, manufacture or distribute marijuana including for medical purposes, heroin, narcotics, or other controlled substance, use or possession of illegal drugs, and drug paraphernalia including for medical purposes; being under the influence of illegal drugs; except as expressly permitted by the law during any social events, meetings, or study sessions or community services related with Sigma Omega Nu.
- Shall not engage in the illegal use or possession of firearms or other weapons
- Acts of sexual harassment (stalking or coercion) or sexual assault, sexual advances, request for sexual favors, and other visual, verbal or physical conduct of a sexual or gender bias nature constitutes sexual harassment (of opposite sex or same sex) shall not be permitted under any circumstances.
- Shall not act unlawful discrimination based on race, creed, color, gender (including pregnancy related conditions), age, sexual orientation, disability, military status, religion or national origin.

Failure to abide by this Code of Ethics and or contempt of disciplinary proceedings including interrupting any proceeding under the directions of the National or Chapter Executive Board shall result in disciplinary action in accordance with the Judicial Procedures.

Sigma Omega Nu Latina Interest Sorority, Inc.

Officer Code of Ethics

As elected officers, those Sisters holding officer positions have the opportunity to guide the Chapter in a positive and progressive manner. In addition, the Officers and the Pledge Mother(s) hold positions of greater respect and greater responsibility. They shall be held to an additional Code of Ethics.

All officers, especially the Executive Board and Pledge Mother(s), shall:

- Uphold and promote the Sorority Code of Ethics
- Uphold the history, purpose, and objectives of the Sorority
- Keep all sorority meanings, traditions, rituals and ceremonies confidential
- Keep all information regarding Pledgeship confidential
- Keep all decision making of the Sorority confidential
- Inform the Chapter immediately if unable to fulfill her officer obligations
- Inform the Chapter immediately if, following elections, the University deems her ineligible under University requirements
- Abide by all Sorority Bylaws (Chapter and National Board), Standing Rules, Sorority Traditions, Chapter and National Traditions, and Standardized Pledgeship (Chapter and Prospective Chapter)
- Fulfill their responsibilities and duties as outlined in the Chapter Bylaws, Chapter Standards, and National Board Bylaws
- Ensure that the Chapter understands their responsibilities to the Chapter, National Board, and their respective University
- Uphold the requirements and responsibilities of the Chapter to the National Board;
- Communicate accurate and timely information to the National Board
- Abide by all University Policies and Regulations, and shall notify the National Board (within 2 days of being notified by the University) should they be involved with a University investigation, formal or informal hearing, conference or resolution related to Sigma Omega Nu
- Inform the Chapter of all applicable University Policies and Regulations;
- Keep on file with National Board your University Rules and Regulations (if applicable, most current Student Organization Handbooks)
- Comply with all applicable federal, state, and local laws and regulations, and shall notify the National Board if legal representation or advisor is needed on behalf of a member or Chapter
- Cooperate fully with the National Board and answer questions honestly should they be involved in a National Board, University Formal or Informal Investigation, Hearing, Conference, or Resolution related to Sigma Omega Nu
- Shall not engage in forgery, alteration, misuse, theft, vandalism of Sigma Omega Nu's property or Chapter Bylaws, Standing Rules, Sorority Traditions, Chapter and National Traditions and
- Standardized Pledgeship

- Be respectful, courteous and professional with all other Sisters. Shall not cause verbal abuse, intimidation, coercion or bullying (physical, verbal, visual) which is sufficiently persistent or pervasive so as to interfere with or limit sisters to engage in meetings, socials, events, conferences, study sessions, and community service events related with Sigma Omega Nu.
- Sisters shall not interfere by force, threat or duress with the freedom of movement of person or vehicles on or off campus.
- Shall not be disorderly, lewd, or have indecent conduct while representing Sigma Omega Nu
- Will not falsify grades for any purposes or assisting others to falsify grades or other forms of academic dishonesty for purposes of accepting a new member or retaining a member
- Support each other so that Sisters have the opportunity to reach their full potential
- Provide confidential advice and mediation should any other Sister(s) request it
- Create an environment/culture that is free of harassment, intimidation, bias, unlawful discrimination, and bullying (physical, verbal, or visual)
- Foster an environment that enhances individual creativity and teamwork value, while honoring mutual trust and respect
- Create an environment where Sisters feel comfortable raising concerns without fear of retaliation
- Not allow personal interests and relationships to interfere, or appear to interfere, with your ability to make decisions in the best interest of the Chapter and the Organization
- Be respectful, courteous and professional when interacting with Little Sisters
- Conduct themselves in a dignified manner when representing the Sorority, including at all Official Chapter and National Sorority events
- Conduct themselves in an honorable and dignified manner when attending all other organizations' events
- Conduct themselves in a dignified, respectful, and professional manner when interacting with members from other organizations, the campus community or the greater community
- Shall not false report any situation, including the safety, security, for any reason
- Shall not make an accusation that is intentionally false or is made with reckless disregard for the truth against any member of Sigma Omega Nu
- Sisters shall be required to file a written complaint to the National Board and the Chapter's Executive Board specifying which Code of Conduct or Bylaws have been violated if seeking, or referring, addressing, and resolving member misconduct.
- Report improper conduct or legal violation to the National Board and/or the University, without fear of punishment, retaliation, or discrimination. Sigma Omega Nu prohibits retaliation against any Sister who reports a possible violation of our Code of Ethics, Bylaws, and/or the law.
- Shall not use, possess, manufacture or distribute marijuana including for medical purposes, heroin, narcotics, or other controlled substance, use or possession of illegal drugs, and drug paraphernalia including for medical purposes; being under the influence of illegal drugs; except as expressly permitted by the law during any social events, meetings, or study sessions or community services related with Sigma Omega Nu.
- Shall not engage in the illegal use or possession of firearms or other weapons
- Acts of sexual harassment (stalking or coercion) or sexual assault, sexual advances, request for sexual favors, and other visual, verbal or physical conduct of a sexual or gender bias nature constitutes sexual harassment (of opposite sex or same sex) and shall not be permitted under any circumstances.
- Shall not act unlawful discrimination based on race, creed, color, gender (including pregnancy related conditions), age, sexual orientation, disability, military status, religion or national origin.

Failure to abide by this Code of Ethics or contempt of disciplinary proceedings including interrupting any proceeding under the directions of the National Board or Chapter Executive Board shall result in disciplinary action in accordance with the Judicial Procedures.

Sigma Omega Nu Latina Interest Sorority, Inc.

Sexual Assault Protocol

This protocol has been established to provide an appropriate and coordinated response to survivors of sexual assault.

Definitions (taken from the Clery Act):

- Sexual Assault: Any sexual act directed against another person, without consent of the victim, including instance where the victim is incapable of giving consent.
- Rape: Penetration, no matter how slight, of the vagina or anus, with any body part or object, or oral penetration by a sex organ of another person, without the consent of the victim. This offense includes the rape of both males and females [all genders].
- Fondling: Touching of the private body parts of another person for the purpose of sexual gratification, without the consent of the victim, including instances where the victim is incapable of giving consent because of his/her age or because of his/her temporary or permanent mental capacity.
- Statutory Rape: Sexual intercourse with a person who is under the age of consent (18 years old).

Disclosure:

Any time you are informed by a member that they have been a victim of sexual abuse or sexual assault you should do the following:

- Listen respectfully and let the survivor know that you care. Let them know that you are there for them and receptive to what they are sharing.
- Thank the survivor for telling you. Allow survivors to disclose as little or as much about the assault as they are comfortable sharing.
- Validate their feelings about the experience. Let them know that you believe them and that what they went through is understandably painful.
- Express to the survivor that you are sorry that s/he experienced such an event.
- Avoid asking for specifics/details, defining the experience for the survivor, or exhibiting distraction.
- Do not question the validity of the survivor's claim.
- Do not make excuses for the perpetrator. The perpetrator's actions are inexcusable.
- Allow survivors to direct their own recovery and to have control over their thoughts, feelings, and actions because a critical part of healing is regaining some sense of control of their lives.
- Take care of yourself. Secondary trauma is real, and you should (while respecting the survivors' confidentiality) turn to your own support system and be realistic about how much you can provide. A survivor may demand more of you than you are able to give. You may not be trained to manage a survivor's recovery and may be emotionally exhausted. Be kind and honest with the survivor about what you are able to do, and encourage him or her to seek professional help through a hotline or therapist.

Medical & Safety Concerns

- Inquire about immediate safety concerns (ex. does the survivor live with or regularly interact with the perpetrator; has the perpetrator threatened future harm to the survivor).
- Inquire about the survivor's need for medical treatment (ex. physical injury, emergency contraception, treatment of possible sexually transmitted infections). Offer to help connect the survivor with medical care providers.

Reporting Options (External):

An individual who has experienced an incident of sexual assault, sexual harassment, or sexual misconduct may report the incident at any time, regardless of how much time has elapsed since the incident occurred. Sigma Omega Nu is committed to supporting the rights of a person reporting an incident to make an informed choice among options and services available.

- **Reporting to Law Enforcement:**

An incident can be reported to law enforcement at any time, 24 hours a day/7 days a week, by calling 911. Offer to assist or accompany the survivor to do so, or offer to arrange for an advocate (if available) to accompany the survivor to make a report to law enforcement. Making a report to law enforcement does not commit the survivor to having the alleged assailant notified of the report, having an investigation conducted, or to pressing charges. Those decisions can be made at a later point.

- **Reporting to Title IX:**

A report can be made to your University's Title IX office. The report will initiate a Title IX investigation by the University to determine if there has been a violation by a University community member of the University's sexual misconduct policy.

Amnesty: No information concerning any student's underage drinking or illegal drug use that is revealed to the Title IX official in the course of a report or investigation will be referred to the other department for student conduct or voluntarily reported to law enforcement.

*Reporting to law enforcement and your University's Title IX office are not mutually exclusive options. A survivor can report to one, both or neither.

- **Making an Anonymous Report:**

An anonymous report does not require the disclosure of the name of the person making the report or the names of the individuals involved, and the anonymous report may, but need not, request any particular action.

- Depending on the amount of information available about the incident or the individuals involved, the ability to respond may be limited. While the institution is limited in the action they can take following an anonymous report, it provides important information to the institution about prevalence, campus climate, patterned behavior, and specific events/locations.

- **Take No Action**

A survivor may wish to do nothing other than have a conversation with you.

Reporting Options (Internal):

- **Individual Member**

A survivor may make a report to an individual sister. We encourage the sister to share with the survivor the steps in this protocol. The individual member is not required to report to the Chapter or National Board unless the survivor requests that to be done.

- **Chapter Level**

A report can be made to the Chapter President. The Chapter President will support and assist the sister in whichever step she wishes to take.

- If the survivor requests to notify the Active Body, the Chapter President may call a meeting for all members. At this meeting the survivor may request to remain anonymous and does not need to disclose any information that they do not feel comfortable sharing.
- If the perpetrator belongs to an organization on/off campus, the Chapter President may offer to send a notification letter to the group on behalf of the sister. The sister may choose whether or not to include her name or send anonymously. If this step is initiated, please reach out to the National Board for guidance.

- **National Board Level**

A report can be made to the National Board President. The National Board President will support the sister in whichever step she wishes to take.

- If the survivor requests to notify the National Board, the National Board President may call a meeting for all National Board members. At this meeting the survivor may request to remain anonymous, and does not need to disclose any information that they do not feel comfortable sharing.
- If the perpetrator belongs to an organization on/off campus, the National Board President may offer to send a notification letter to the group on behalf of the sister. The sister may choose whether or not to include her name or send anonymously.

Resources:

If a member discloses that she has experienced sexual violence or assault, always provide referrals to counseling and support services, even if the incident(s) occurred in the past. Survivors should know that individuals and groups, on and off campus, are available to support them throughout this incident.

Sigma Omega Nu Latina Interest Sorority, Inc.

Chapter Judicial Review & Procedures

This procedure must be followed during any judicial review that is requested by a Chapter for an individual Sister, regardless of their status (i.e., Active, Inactive, Alumna, etc.).

The Code of Ethics and Officers' Code of Ethics are intended to provide an ethical and moral base for this Sorority. Failure to uphold either shall result in appropriate and relevant consequences to be determined by the Judicial Review Committee.

The following process shall be followed:

1. Confidentiality
 - a. All matters related to the Judicial Review process must remain strictly confidential.
 - b. Only members of the Judicial Review Committee may discuss the details of the case.
 - c. The nature of the breach(es) and any sanctions imposed may not be shared outside of the Chapter, with the exception of the National Board.
 - d. If guidance or support is needed, Chapters may contact the National Vice President of Parliamentary Procedures.
2. Initiating a Review
 - a. At least one-third of the Active Membership must sign the written request describing the alleged breach(es).
 - b. The request must then be submitted to the Chapter's Sergeant at Arms and shall be presented at the Chapter's next general meeting.
 - i. If the Sergeant at Arms is under review, the Vice President would present the letter.
3. Forming the Judicial Review Committee
 - a. The Risk Management Officer shall randomly select one-third of Active Members to serve as the Judicial Review Committee.
 - i. The accused sister may not be on the committee.
 - b. The Sergeant at Arms shall oversee the Judicial Review Committee and shall take over any point of contact related to the judicial review.
 - i. If the Sergeant at Arms is under review, the Vice President shall take her place.
4. Meetings & Confidentially
 - a. The Judicial Review Committee shall hold official meetings to conduct its business.
 - i. Quorum must be met in order to proceed with any discussion or decisions.
 - b. Meeting minutes must be recorded by the Sergeant at Arms but shall remain confidential and accessible only to the Judicial Review Committee.
 - i. These minutes must not be shared with future members, officers, or general membership.
 - ii. It is advised that the committee members use personal emails not officer emails, to avoid other sisters accessing the minutes.
 - c. Chapters may contact the National Vice President of Parliamentary Procedures for guidance

and support.

5. Notification to Sister Under Review
 - a. The Sergeant at Arms shall notify the sister under review within 24 hours of the judicial review letter being approved.
 - b. This notification must include the original request for judicial review and a formal request for a written statement from the sister.
 - i. While the sister is not required to respond, she may submit a written statement and any supporting evidence she deems relevant.
6. Initial Review Period (2 weeks)
 - a. The Judicial Review Committee has 2 weeks from the time the written request is presented to determine whether a breach of the Code of Ethics has occurred.
 - b. This review may include (but is not limited to):
 - i. Reviewing potential evidence
 - ii. Interviewing the sister under review
 - iii. Reviewing statements or testimony
 - c. Voting on Breaches
 - i. After reviewing the case, the Judicial Review Committee must vote on whether a breach(es) occurred.
 - ii. Judicial Review Committee members must vote on each breach, which need to be approved by a 2/3 vote.
 - d. After the 2 weeks, the Sergeant at Arms shall notify the Chapter at the following General Chapter Meeting if there was indeed a breach to the Code of Ethics.
 - i. At no time shall the breaches be disclosed.
 - ii. The sister under review must be notified via email of the breach determination at least twenty-four hours prior to the General Chapter Meeting at which the determination is announced.
7. Determining Sanctions (3 weeks)
 - a. The Judicial Review Committee shall have up to three weeks from the date the breach(es) is/are officially confirmed to determine and finalize all appropriate consequences.
 - i. At minimum, the following sanctions shall be imposed:
 1. An apology letter directed to the Chapter.
 - a. If the breach involves another sister, the sister under review shall also submit a written apology to the affected sister.
 - ii. Note: A Chapter is not able to provide recommendation for deactivation.
 - iii. Should the Judicial Review Committee be unable to reach a unanimous decision on additional sanctions within the three week time period, but the Judicial Review Committee and the Chapter believe additional sanctions are relevant, the matter shall be turned over to the National Vice President of Parliamentary Procedures.
 - b. The Judicial Review Committee's final decision must be approved by a 2/3 vote.
 - i. The Judicial Review Committee shall determine an appropriate timeline for completing all sanctions.
 1. This timeline must not exceed one academic semester.
 - ii. If the sanctioned member fails to complete any part of the assigned sanctions within the given timeframe, the Chapter must initiate a second Judicial Review to assess and address the non-compliance.
8. Final Notifications
 - a. At the conclusion of the review period, the Sergeant at Arms shall announce the decision at the next scheduled General Chapter Meeting.

- i. The sister under review must be notified of the decision within forty-eight hours of the conclusion of the review.
 - ii. In all cases, the sister under review must be notified no later than twenty-four hours prior to the General Chapter Meeting at which the decision is announced.
 - iii. Members of the Chapter may not share details about the breach of the Code of Ethics or any resulting consequences with anyone outside the Chapter, except when disclosure to the National Board is necessary for official review or support.
 - b. Following the announcement of their decision, the Judicia Review Committee overseer shall inform the National Vice President of Parliamentary Procedures within one week of the conclusions of the review.
 - i. National Vice President of Parliamentary Procedures will notify the National Board at the following National Board General Meeting.
9. Appeal Proceedings for a Judicial Review
- a. A Sister who has been sanctioned through the Judicial Review process has the right to appeal the decision to Sigma Omega Nu's National Board.
 - b. To begin the appeal process, the sanctioned member must:
 - i. Submit a written appeal to the National President, which must include:
 - 1. A statement explaining why she believes she was wrongly accused.
 - 2. A copy of the original Judicial Review request.
 - 3. A copy of the sanctions imposed by the Judicia Review Committee.
 - ii. After submitting the appeal, the sister will receive additional steps and guidance from the National President regarding how her appeal will be handled.
 - c. Upon receiving the appeal, the National Board shall have two months to review the case and determine if the sister was wrongly accused or if the sanctions should be revised. .
 - i. To reverse the decision made by the Judicia Review Committee, a 2/3 vote will be required.
 - ii. Sanctions may be voted on as a whole or individual, at the discretion of the overseer of the appeal.
 - iii. If the vote fails, the original sanctions will be upheld.
 - d. Notification
 - i. The Chapter and appealing sister shall be notified of the results by the National President within one week of the determination.

Sigma Omega Nu Latina Interest Sorority, Inc.

National Board Judicial Review & Procedures

This procedure applies when the National Board requests a judicial review for any Sister or Chapter, regardless of member status. (Active, Inactive, Alumnae, etc.).

The Code of Ethics and Officers' Code of Ethics are intended to provide an ethical and moral base for this Sorority. Failure to uphold either shall result in appropriate consequences.

The following process shall be followed:

1. Initiating a Review
 - a. A written request to review a breach of the Code of Ethics must be signed by at least one-third of Active National Board Officers and submitted to the National Vice President of Parliamentary Procedures.
 - b. The request is presented at the next National Board Meeting following receipt of the request.
2. Forming the Judicial Review Committee
 - a. At the National Board Meeting where the request is presented:
 - i. The National Vice President of Risk Management shall randomly select one-third of Active National Board Officers and Chapter Representatives to form the Judicial Review Committee.
 - ii. The sister and/or Chapter under review cannot serve on the committee.
 - iii. The National Vice President of Parliamentary Procedures shall oversee the Judicial Review Committee without extra voting power.
 1. If the National Vice President of Parliamentary Procedures is under review, the National President assumes the overseer role.
3. Notification to Sister Under Review
 - a. The National Vice President of Parliamentary Procedures shall notify the sister under review within 24 hours of the judicial review letter being approved.
 - b. This notification must include the original request for judicial review and a formal request for a written statement from the sister.
 - c. While the sister is not required to respond, she may submit a written statement and any supporting evidence she deems relevant.
4. Meetings & Confidentiality
 - a. The Judicial Review Committee shall hold official meetings to conduct its business.
 - i. A quorum must be met in order to proceed with any discussion or decisions.
 - b. The National Vice President of Parliamentary Procedures (or the acting overseer) is responsible for keeping detailed and confidential meeting minutes throughout the review process.
 - i. Confidentiality must be maintained at all times.
 - ii. Committee members may not discuss case details (including the breach or sanctions) with anyone outside of the Judicial Review Committee.

- iii. Meeting minutes are confidential and must not be shared with future National Board members or anyone not directly involved in the review process.
 - iv. Information may only be shared with the Alumnae Advisory Committee if the case is escalated for appeal or further review.
- 5. Determining if a Breach Occurred (4 weeks)
 - a. The Judicial Review Committee has 4 weeks to decide if a breach of the Code of Ethics or Officers' Code of Ethics took place.
 - b. Within 1 week after making this determination, the Judicial Review Committee must announce the decision to the National Board via email.
- 6. Determining Sanctions (3 weeks)
 - a. The Judicial Review Committee shall have up to 3 weeks to determine and finalize appropriate sanctions after confirming a breach.
 - i. If the review involves multiple sisters, the Judicial Review Committee is granted an additional 3 weeks to complete this process.
 - ii. At minimum, the sanctioned sister must submit a written apology letter addressed to the parties involved.
 - b. The Judicial Review Committee's final decision must be approved by a 2/3 vote. All Judicial Review Committee members must agree on the sanctions.
 - i. The Judicial Review Committee must set a clear timeline for completing all sanctions.
 - ii. This timeline must not exceed one academic year.
 - c. If the sanctioned sister fails to complete any part of the assigned sanctions within the given timeframe, she will be placed in bad standing.
 - i. To resolve her standing, she must request a meeting with the National Board by contacting the National Vice President of Communications to be added to the agenda for the next National Board Meeting.
- 7. Final Notifications
 - a. After finalizing the decision, the National Vice President of Parliamentary Procedures shall notify the National Board President within one week.
 - i. At no time shall members of the Judicial Review Committee disclose details related to the breach(es) found or imposed sanctions outside of the committee.
 - b. At the conclusion of the review, the Judicial Review Committee shall vote on the appropriate level of notification regarding the outcome of the case. Notification may include one or more of the following, as determined by the Committee:
 - i. The applicable region
 - ii. The active Chapter
 - iii. Chapter Actives and Alumnae
 - iv. Announcement at the next National Council Meeting
 - v. Any notification shall be limited to the outcome of the review and shall not include limited details of the breach or imposed sanctions.
- 8. Appeal Proceedings for a Judicial Review

A sister who has been sanctioned through the Judicial Review process has the right to appeal the decision to Sigma Omega Nu's National Executive Board.

 - a. To begin the appeal process, the sanctioned member must:
 - i. Submit a written appeal to the National President, which must include:
 - 1. A statement explaining why she believes she was wrongly accused.
 - 2. A copy of the original Judicial Review request.
 - 3. A copy of the sanctions imposed by the Judicial Review Committee.
 - ii. After submitting the appeal, the sister will receive additional steps and guidance from

- the National President regarding how her appeal will be handled.
- b. Upon receiving the appeal, the National Board will review the case to determine if the sister was wrongly accused.
 - i. To reverse the decision made by the Judicial Review Committee, a 2/3 vote will be required.
 - ii. Sanctions may be voted on as a whole or individual, at the discretion of the overseer of the appeal.
 - iii. If the vote fails, the original sanctions will be upheld.
- 9. Recommendation for Deactivation
 - a. If a Recommendation for Deactivation is included in the sanctions, this recommendation must go to the National Executive Board for approval.
 - b. The process listed in National Bylaws Article XVIII. Deactivation shall be followed.
- 10. Appealing a Recommendation for Deactivation
 - a. If the Recommendation for Deactivation is approved, the sanctioned sister may appeal the decision to Sigma Omega Nu's Alumnae Advisory Committee.
 - b. To begin the appeal process, the sanctioned sister must:
 - i. Submit a written appeal to the National President, which must include:
 - 1. A statement explaining why she believes she was wrongly accused and/or why deactivation is not an appropriate sanction.
 - 2. A copy of the original Judicial Review request.
 - 3. A copy of the sanctions imposed by the Judicial Review Committee.
 - ii. After submitting the appeal, the sister will receive additional steps and guidance from the National President regarding how her appeal will be handled.
 - c. The National President will then call an Alumnae Advisory Committee meeting.
 - d. In the absence of an Alumnae Advisory Committee, and when an appeal is requested:
 - i. Another committee must be formed using the same rules for forming Judicial Review Committees, but may not include any of the members of the original Judicial Review Committee.
 - ii. The committee will get a summary from the National Vice President of Parliamentary Procedures of the proceedings of the original Judicial Review.
 - iii. The committee will also get a summary from the National President from the proceedings of the approval of the Recommendation for Review.

Sigma Omega Nu Latina Interest Sorority, Inc.

Other Judicial Review & Procedures

Applicable when one Sister (of any status) requests a Judicial Review of another Sister or Chapter regardless of member status (Active, Inactive, Alumnae, etc.).

The Code of Ethics and Officers' Code of Ethics are intended to provide an ethical and moral base for this Sorority. Failure to uphold either shall result in appropriate consequences.

The following process shall be followed:

1. Submitting a Request
 - a. The Sister requesting the review must:
 - i. Submit a written and signed request describing the alleged breach(es) of the Code of Ethics to the National Vice President of Parliamentary Procedures.
 - ii. Upon receipt of the request, the National Vice President of Parliamentary Procedures will then present the request to the National Executive Board at the next Executive Board Meeting.
 - a. The National Executive Board shall determine whether to grant the request by one-third (1/3) vote.
2. Forming the Judicial Review Committee
 - a. At the same meeting the request is presented and accepted for review:
 - i. The National Vice President of Risk Management shall randomly select one-third of Active National Board Officers and Chapter Representatives to form the Judicial Review Committee.
 - ii. The sister and/or Chapter under review cannot serve on the committee.
 - iii. The National Vice President of Parliamentary Procedures shall oversee the Judicial Review Committee without extra voting power.
3. Notification to Sister Under Review
 - a. The National Vice President of Parliamentary Procedures shall notify the sister under review within 24 hours of the judicial review letter being approved.
 - b. This notification must include the original request for judicial review and a formal request for a written statement from the sister.
 - c. While the sister is not required to respond, she may submit a written statement and any supporting evidence she deems relevant.
4. Meetings & Confidentiality
 - a. The Judicial Review Committee shall hold official meetings to conduct its business.
 - i. A quorum must be met in order to proceed with any discussion or decisions.
 - b. The National Vice President of Parliamentary Procedures (or the acting overseer) is responsible for keeping detailed and confidential meeting minutes throughout the review process.
 - i. Confidentiality must be maintained at all times.
 - ii. Committee members may not discuss case details (including the breach or sanctions)

- with anyone outside of the Judicial Review Committee.
 - iii. Meeting minutes are confidential and must not be shared with future National Board members or anyone not directly involved in the review process.
 - iv. Information may only be shared with the Alumnae Advisory Committee if the case is escalated for appeal or further review.
- 5. Determining if a Breach Occurred (4 weeks)
 - a. The Judicial Review Committee has 4 weeks to decide if a breach of the Code of Ethics or Officers' Code of Ethics took place.
 - b. Within 1 week after making this determination, the Judicial Review Committee must announce the decision to the National Board via email.
 - c. If no breach occurred, the Judicial Review Committee should notify the National Board via email.
- 6. Determining Sanctions (3 weeks)
 - a. The Judicial Review Committee shall have up to 3 weeks to determine and finalize appropriate sanctions after confirming a breach.
 - i. If the review involves multiple sisters, the Judicial Review Committee is granted an additional 3 weeks to complete this process.
 - ii. At minimum, the sanctioned sister must submit a written apology letter addressed to the parties involved.
 - b. The Judicial Review Committee's final decision must be approved by a 2/3 vote. All Judicial Review Committee members must agree on the sanctions.
 - i. The Judicial Review Committee must set a clear timeline for completing all sanctions.
 - ii. This timeline must not exceed one academic year.
 - c. If the sanctioned sister fails to complete any part of the assigned sanctions within the given timeframe, she will be placed in bad standing.
 - i. To resolve her standing, she must request a meeting with the National Board by contacting the National Vice President of Communications to be added to the agenda for the next National Board Meeting.
- 7. Final Notifications
 - a. After finalizing the decision, the National Vice President of Parliamentary Procedures shall notify the National Board President within one week.
 - b. At no time shall members of the Judicial Review Committee disclose details related to the breach(es) found or imposed sanctions outside of the committee.
 - c. At the conclusion of the review, the Judicial Review Committee shall vote on the appropriate level of notification regarding the outcomes of the case. Notification may include one or more of the following as determined by the Committee:
 - i. The applicable region
 - ii. The active Chapter
 - iii. Chapter Actives and Alumnae
 - iv. Announcement at the next National Council Meeting
 - v. Any notification shall be limited to the outcome of the review and shall not include limited details of the breach or imposed sanctions.
- 8. Appeal Proceedings for a Judicial Review
 - a. A sister who has been sanctioned through the Judicial Review process has the right to appeal the decision to Sigma Omega Nu's National Executive Board.
 - b. To begin the appeal process, the sanctioned member must:
 - i. Submit a written appeal to the National President, which must include:

1. A statement explaining why she believes she was wrongly accused.
 2. A copy of the original Judicial Review request.
 3. A copy of the sanctions imposed by the Judicial Review Committee.
- ii. After submitting the appeal, the sister will receive additional steps and guidance from the National President regarding how her appeal will be handled.
- c. Upon receiving the appeal, the National Board will review the case to determine if the sister was wrongly accused or her sanctions need to be revised.
 - i. To reverse the decision made by the Judicial Review Committee, a 2/3 vote will be required.
 - ii. Sanctions may be voted on as a whole or individual, at the discretion of the overseer of the appeal.
 - iii. If the vote fails, the original sanctions will be upheld.
9. Recommendation for Deactivation
 - a. If a Recommendation for Deactivation is included in the sanctions, this recommendation must go to the National Executive Board for approval.
 - b. The process listed in National Bylaws Article XVIII. Deactivation shall be followed.
10. Appealing a Recommendation for Deactivation
 - a. If the Recommendation for Deactivation is approved, the sanctioned sister may appeal the decision to Sigma Omega Nu's Alumnae Advisory Committee.
 - b. To begin the appeal process, the sanctioned sister must:
 - i. Submit a written appeal to the National President, which must include:
 1. A statement explaining why she believes she was wrongly accused and/or why deactivation is not an appropriate sanction.
 2. A copy of the original Judicial Review request.
 3. A copy of the sanctions imposed by the Judicial Review Committee.
 - ii. After submitting the appeal, the sister will receive additional steps and guidance from the National President regarding how her appeal will be handled.
 - c. The National President will then call an Alumnae Advisory Committee meeting.
 - d. In the absence of an Alumnae Advisory Committee, and when an appeal is requested:
 - i. Another committee must be formed using the same rules for forming Judicial Review Committees, but may not include any of the members of the original Judicial Review Committee.
 - ii. The committee will get a summary from the National Vice President of Parliamentary Procedures of the proceedings of the original Judicial Review.
 - iii. The committee will also get a summary from the National President from the proceedings of the approval of the Recommendation for Review.

Sigma Omega Nu Latina Interest Sorority, Inc.

Cease & Desist Judicial Review & Procedures

Definition: A Cease and Desist Directive is a written directive issued by the National Board in response to a reported hazing allegation that may constitute a violation of the Code of Ethics.

Purpose: The purpose of a Cease and Desist Directive is to require a chapter to immediately cease all pledgship-related activities (“cease”) and to prohibit the resumption of such activities (“desist”) for the remainder of the academic term or until a specified date, as determined by the National Board.

The issuance of a Cease and Desist Directive initiates the Sorority’s Judicial Review process.

1. The following process shall be followed:
 - a. Upon report of hazing to the National Board, the National Board President shall issue the chapter an official Cease and Desist letter, notifying the chapter of the following:
 - i. Chapter must immediately stop all pledgship activities and may not resume until the directive has been formally lifted.
 - ii. Chapter must fully and honestly with the NVP of Parliament in all matters related to the judicial review. This includes
 1. Providing written statements
 2. Attending judicial review interviews
 3. Submit any requested documentation
 - b. The National President shall also notify the National Board, specifically National Vice President of Risk Management and National Vice President of Parliamentary Procedures.
 - c. If there are Little Sisters actively participating at the time of the report, the National President shall notify them that they are immediately relieved of their duties and must return all pledgship-related items.
2. Forming the Judicial Review Committee
 - a. Upon notification from National President:
 - i. The National Vice President of Risk Management shall randomly select one-third of Active National Board Officers and Chapter Representatives to form the Judicial Review Committee.
 - ii. The sister and/or Chapter under review cannot serve on the committee.
 - iii. The National Vice President of Parliamentary Procedures shall oversee the Judicial Review Committee without extra voting power.
3. Meetings & Confidentiality
 - a. The Judicial Review Committee shall hold official meetings to conduct its review.
 - i. A quorum must be met in order to proceed with any discussion or decisions.

- b. The National Vice President of Parliamentary Procedures is responsible for keeping detailed and confidential meeting minutes throughout the review process.
 - i. Confidentiality must be maintained at all times.
 - ii. Committee members may not discuss case details (including the breach or sanctions) with anyone outside of the Judicial Review Committee.
 - iii. Meeting minutes are confidential and must not be shared with future National Board members or anyone not directly involved in the review process.
 - iv. Information may only be shared with the Alumnae
- 4. Determining if a Breach Occurred (4 weeks)
 - a. The Judicial Review Committee has 4 weeks to decide if a breach of the Code of Ethics, Officers' Code of Ethics, or Standardized Pledgeship took place.
 - i. Within 1 week after making this determination, the Judicial Review Committee must announce the decision to the National Board via email.
 - ii. If no breach occurred, the Judicial Review Committee should notify the National Board via email.
 - b. During this time:
 - i. Active members will be interviewed
 - ii. Pledge Mothers will need to submit committee meeting notes and any other material related to the pledge class.
 - iii. Little Sisters/Neos will be interviewed, if they would like, will not be obligated to participate.
 - iv. Actives will be asked not to discuss any events with any parties concerning review (either before giving a statement or afterwards).
 - v. Actives will be asked to provide a written and verbal account of the incident(s) requiring the review.
 - vi. Official Notification to the University will also be issued by the NVP of Parliament.
 - 1. If an additional investigation is conducted by the University, the Chapter is expected to cooperate fully and honestly. NVP of Parliament is able to submit evidence gathered upon a University officials request.
- 5. Determining Sanctions (3 weeks)
 - a. The Judicial Review Committee shall have up to 3 weeks to determine and finalize appropriate sanctions after confirming a breach.
 - i. If the review involves multiple sisters, the Judicial Review Committee is granted an additional 3 weeks to complete this process.
 - ii. At minimum, the sanctioned sister must submit a written apology letter addressed to the parties involved.
 - b. The Judicial Review Committee's final decision must be passed by a 2/3 vote. All Judicial Review Committee members must agree on the sanctions.
 - i. The Judicial Review Committee must set a clear timeline for completing all sanctions.
 - ii. This timeline must not exceed one academic year.
 - c. If the sanctioned sister fails to complete any part of the assigned sanctions within the given timeframe, she will be placed in bad standing.

- i. To resolve her standing, she must request a meeting with the National Board by contacting the National Vice President of Communications to be added to the agenda for the next National Board Meeting.
- 6. Final Notifications
 - a. After finalizing the decision, the NVP of Parliamentary Procedures, shall notify the National President within one week.
 - i. At no time shall members of the Judicial Review Committee disclose details related to the breach(es) found or imposed sanctions outside of the committee.
 - ii. At the conclusion of the review, the Judicial Review Committee shall vote on the appropriate level of notification regarding the outcome of the case. Notification may include one or more of the following, as determined by the Committee:
 - 1. The applicable Region
 - 2. The active Chapter
 - 3. Chapter actives and alumnae
 - 4. Announcement at the next National Council Meeting
 - a. In the interest of transparency and prevention, the National Board may disclose necessary, high-level information regarding the hazing and resulting sanctions to chapters for the purpose of education and prevention of recurrence.
 - b. Any such disclosure shall be limited to information deemed appropriate by the National Board and shall not include identifying details beyond what is necessary to achieve these purposes.
 - iii. The University and National Board must be provided a letter with breaches, sanctions and findings.
 - 1. If the University conducts their own investigation, the chapter must continue to comply.
- 7. Appeal Proceedings for a Judicial Review
 - a. A sister who has been sanctioned through the Judicial Review process has the right to appeal the decision to Sigma Omega Nu's National Executive Board.
 - b. To begin the appeal process, the sanctioned member must:
 - i. Submit a written appeal to the National President, which must include:
 - 1. A statement explaining why she believes she was wrongly accused.
 - 2. A copy of the original Judicial Review request.
 - 3. A copy of the sanctions imposed by the Judicial Review Committee.
 - 4. After submitting the appeal, the sister will receive additional steps and guidance from the National President regarding how her appeal will be handled.
 - c. Upon receiving the appeal, the National Board will review the case to determine if the sister was wrongly accused or her sanctions need to be revised.
 - i. To reverse the decision made by the Judicial Review Committee, a $\frac{2}{3}$ vote will be required.
 - ii. Sanctions may be voted on as a whole or individual, at the discretion of the overseer of the appeal.
 - iii. If the vote fails, the original sanctions will be upheld.

8. Recommendation for Deactivation
 - a. If a Recommendation for Deactivation is included in the sanctions, this recommendation must go to the National Executive Board for approval.
 - b. The process is listed in National Bylaws Article XVIII. Deactivation shall be followed.
9. Appealing a Recommendation for Deactivation
 - a. If the Recommendation for Deactivation is approved, the sanctioned sister may appeal the decision to Sigma Omega Nu's Alumnae Advisory Committee.
 - b. To begin the appeal process, the sanctioned sister must:
 - i. Submit a written appeal to the National President, which must include:
 1. A statement explaining why she believes she was wrongly accused and/or why deactivation is not an appropriate sanction.
 2. A copy of the original Judicial Review request.
 3. A copy of the sanctions imposed by the Judicial Review Committee.
 - ii. After submitting the appeal, the sister will receive additional steps and guidance from the National President regarding how her appeal will be handled.
 - iii. The National President will then call an Alumnae Advisory Committee meeting.
 - c. In the absence of an Alumnae Advisory Committee, and when an appeal is requested:
 - i. Another committee must be formed using the same rules for forming Judicial Review Committees, but may not include any of the members of the original Judicial Review Committee.
 - ii. The committee will get a summary from the National Vice President of Parliamentary Procedures of the proceedings of the original Judicial Review.
 - iii. The committee will also get a summary from the National President from the proceedings of the approval of the Recommendation for Review.